



CHAPTER cxi.

An Act to confirm certain Provisional Orders of the A.D. 1912.
Local Government Board relating to Bala Harrington
and Hipperholme. [7th August 1912.]

WHEREAS the Local Government Board have made the
Provisional Orders set forth in the schedule hereto under
the provisions of the Gas and Water Works Facilities Act 33 & 34 Vict.
1870 and the Public Health Act 1875: c. 70.

And whereas it is requisite that the said Orders should be 38 & 39 Vict.
confirmed by Parliament: c. 55.

Be it therefore enacted by the King's most Excellent Majesty
by and with the advice and consent of the Lords Spiritual and
Temporal and Commons in this present Parliament assembled
and by the authority of the same as follows:—

1. The Orders as altered and set out in the schedule hereto Orders in
shall be and the same are hereby confirmed and all the provisions schedule
thereof shall have full validity and force. confirmed.

2. This Act may be cited as the Local Government Board's Short title.
Provisional Orders Confirmation (Gas) Act 1912.

A.D. 1912.

S C H E D U L E.

URBAN DISTRICT OF BALA.

*Bala (Gas)
Order.*

*Provisional Order under the Gas and Water Works Facilities
Act 1870.*

To the Urban District Council of Bala ; --

And to all others whom it may concern.

WHEREAS the Urban District Council of Bala (herein-after referred to as "the Council") are the Urban authority within the meaning of the Public Health Act 1875 for the Urban District of Bala in the County of Merioneth (herein-after referred to as "the District");

And whereas the Council have (subject to the sanction of the Local Government Board) agreed to buy and the Bala Gas Company Limited (herein-after referred to as "the Company") being a company registered under the Companies Act 1862 have in pursuance of a special resolution of the members of the Company passed in manner provided by the Companies (Consolidation) Act 1908 agreed to sell and transfer to the Council all the interest of the Company in the lands hereditaments and premises described in the schedule hereto and all the gas-making apparatus plant and utensils and other effects of the Company all of which are in this Order referred to as "the gas undertaking";

And whereas under the Public Health Act 1875 the Council are themselves empowered to supply gas for the whole of the district and have applied to the Local Government Board to issue a Provisional Order authorising them to maintain and continue the gas undertaking if and when the same shall be acquired by them to manufacture and supply gas and to borrow money for those purposes:

38 & 39 Vict.
c. 55. Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 161 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect viz. :--

Short title.

Art. I. This Order may be cited as the Bala Gas Order 1912.

Interpreta-
tion.

Art. II.—(1) Subject to the provisions of this Order the several words and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the

same respective meanings (unless there be something in the subject matter or context repugnant to that construction). A.D. 1912.

(2) The expression "residual products" includes coke culm asphaltum pitch tar oil ammoniacal liquor or any other refuse or residual matter or thing produced in or resulting from the manufacture of gas by the Council:

*Bala (Gas)
Order.*

The expression "gasworks" includes the works of the Company and any building structure machinery apparatus or work constructed or provided for use in or for the purposes of any process or operation connected with the manufacture or storage of gas or the manufacture conversion preparation or storage of any residual products or otherwise for any purpose of the gas undertaking or of any powers or duties of the Council under this Order or under any enactments incorporated with and applied by this Order:

The expression "gas fittings" includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

Art. III. The limits within which this Order shall be in force and have effect shall be the District. Limits of
Order.

Art. IV. The Council shall in relation to the purposes of this Order exercise and be subject to all the powers and provisions of the Public Health Act 1875 so far as the same are applicable to the purposes of this Order but nothing herein contained shall empower the Council to acquire lands otherwise than by agreement. Application
of Public
Health Act
1875.

Art. V.—(1) The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except Section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Gasworks Clauses Act 1847 (except Sections 30 to 38 and Sections 43 45 46 and 47 thereof) and of the Gasworks Clauses Act 1871 (except Sections 8 24 to 27 29 and 35 and Schedule B thereof) are incorporated with this Order and the said provisions of the said Gasworks Clauses Acts as so incorporated shall have effect subject to the provisions of this Order and shall apply to any gasworks acquired by or vested in the Council under or by virtue of the Public Health Act 1875 or of this Order and to any gasworks constructed or provided under the authority of this Order. Incorporation
of Acts.

(2) The Council may purchase by agreement and subject to the provisions of this Order any land not exceeding one acre in addition to the lands described in the schedule to this Order.

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. Art. VI.—(1) The Council may (when the gas undertaking has been acquired by them) maintain repair renew and continue and from time to time construct extend enlarge and alter any gasworks upon the lands described in the schedule to this Order.

*Bala (Gas)
Order.*
Construction
of works.

(2) Subject to the provisions of this Order the Council may manufacture supply and sell gas within the District for public and private purposes and may manufacture convert or prepare and sell any residual products.

Council not
to manufac-
ture gas or
residual pro-
ducts except
on scheduled
land.

Art. VII.—(1) The Council shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the lands described in the schedule to this Order.

(2) The Council shall not begin to store gas or any residual products on any lands other than the lands described in the schedule to this Order which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

Supply of
gas fittings.

Art. VIII. The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of such gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the said gas fittings are sold let supplied fixed set up altered removed or re-fixed.

Quality of
gas.

Art. IX. The quality of the gas supplied by the Council under this Order shall with respect to its illuminating power be such as to produce at the testing place herein-after mentioned when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Photometer
to be pro-
vided.

Art. X. The Council shall before supplying or within one month after beginning to supply gas under the authority of this Order provide and maintain a suitable photometer and other necessary appliances for the purpose of testing the quality of the gas and shall at all times keep the same in proper order and repair.

Pressure.

Art. XI. All gas supplied by the Council under this Order to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and from sunset to midnight a column of water not

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer. A.D. 1912.
Bala (Gas)
Order.

Art. XII.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place for testing the gas supplied under this Order shall be a testing place provided by the Council on the lands described in the schedule to this Order before commencing such supply. Testing place
and burner.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand Burner No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light.

(3) The Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light that may appear to the Board to be equally or more suitable for the testing.

(4) The Council shall before supplying gas under this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(5) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied under this Order and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

Art. XIII. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident. No penalty
in case of
unavoidable
cause.

Art. XIV. The price to be charged by the Council for gas supplied by them to consumers shall not exceed five shillings and sixpence per one thousand cubic feet and so on in proportion for any less quantity supplied Provided nevertheless that every odd fraction or portion of one hundred cubic feet may be charged for as one hundred cubic feet. Maximum
price.

Art. XV. The Council shall keep separate records of the gas supplied to private consumers and for public lighting respectively Price of gas
for public
supply.

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. The price charged for gas for public lighting shall not be less than that charged to private consumers by more than ten per centum.

Bala (Gas) Order.

Charge for gas supplied by means of prepayment meters.

Art. XVI.—(1) The Council may demand for any gas supplied through a prepayment meter a not greater charge than for gas supplied to private consumers through any other kind of meter or by any other method of supply.

(2) The Council shall not charge for the hire of any prepayment meter and fittings to be used therewith any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of tenpence per one thousand cubic feet supplied in manner aforesaid such sum to include the hire of meter and the fittings used therewith or at the rate of one shilling per thousand cubic feet if such fittings include a cooking stove. The said charge shall include the providing letting fixing repairing and maintenance of the meter and fittings and the cost of collection and other costs incurred by the Council in connexion with the meter and fittings.

(3) The Council shall not charge for the hire of any prepayment meter without fittings any sum other than a sum of money calculated according to the quantity of gas supplied through such prepayment meter and the maximum sum to be so charged shall be at the rate of sixpence per one thousand cubic feet supplied in manner aforesaid. The said charge shall include the providing letting fixing repairing and maintenance of the meter and the cost of collection and other costs incurred by the Council in connexion with the meter.

(4) For the purpose of this Article the expression "prepayment meter" means any meter or appliance by which the quantity of gas supplied is regulated according to the amount prepaid therefor.

Borrowing powers.

Art. XVII. Subject to the provisions of this Order the Council may with the sanction of the Local Government Board and for any of the purposes of this Order (which purposes shall be deemed to include the costs payable by the Council of and in connexion with the preparation making and confirmation by Parliament of this Order and the sum to be paid for the purchase of the gas undertaking) borrow money upon the security of the moneys from time to time received by them by way of revenue under this Order and upon the security of the district fund and general district rate of the district or upon either of those securities.

Local Loans Act and certain provisions of Public Health Act 1875 made applicable.

Art. XVIII. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed or re-borrowed on mortgage under this Order.

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (Gas) Act, 1912.

Art. XIX. The moneys borrowed under Article XVII. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

A.D. 1912.
Bala (Gas)
Order.
 Period for
 repayment
 of moneys
 borrowed.

Art. XX.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
 repayment.

(2) Subject to the provisions of Article XXI. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875. but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Bala (Gas)
Order.*

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase
reduction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. XXI.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve. A.D. 1912.
Bala (Gas)
Order.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine. Surplus of
sinking fund.

Art. XXII.—(1) The Council shall have power—

- (a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

Power to
re-borrow.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) by instalments or annual payments; or
- (b) by means of a sinking fund; or
- (c) out of moneys derived from the sale of land; or
- (d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Bala (Gas)
Order.*

Application
of borrowed
moneys.

Art. XXIII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine. Provided that it shall not be in any way incumbent on any mortgagee to see to the application of any moneys so borrowed nor shall the mortgagee be responsible for any misapplication thereof.

Receiver.

Art. XXIV.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment
of debt.

Art. XXV.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (Gas) Act, 1912.

recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court. A.D. 1912.
Bala (Gas)
Order.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. XXVI. The powers of borrowing conferred by this Order shall be deemed to be distinct from and in addition to the powers of borrowing conferred on the Council by the Public Health Act 1875. Borrowing
powers to be in
addition to
those in Public
Health Act.

Art. XXVII. The Council shall keep separate capital and revenue accounts of all receipts credits payments liabilities and transactions in and about the execution and in relation to the purposes of this Order which accounts shall be distinct from the other accounts of the Council and shall be called respectively "the gas capital account" and "the gas revenue account." Separate
accounts.

Art. XXVIII.—(1) All moneys from time to time received by the Council by way of revenue under this Order shall be applied for the following purposes:— Application
of gas
revenue

In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of constructing continuing conducting managing and maintaining the gasworks;

In payment of the interest on the moneys borrowed or re-borrowed for the purposes of this Order;

In providing for the discharge of any moneys borrowed or re-borrowed for the purposes of this Order in accordance with the provisions of this Order or if those moneys were borrowed thereunder of the Local Loans Act 1875;

In setting apart if the Council think fit a yearly sum not exceeding ten pounds per centum of such revenue for the purpose of forming a reserve fund to provide for any extraordinary expenditure in connexion with the gas undertaking Provided that

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Bala (Gas)
Order.*

the reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article XX. of this Order as to the sinking fund until it amounts according to the market price of the investments to the sum of five hundred pounds and that whenever the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue under this Order;

In payment if the Council think fit of the expenses of executing any permanent works authorised by this Order.

(2) The Council shall carry to the credit of the district fund so much of any balance remaining in any year of the revenue arising from their gas undertaking as may in the opinion of the Council not be required for carrying on the gas undertaking and paying the current expenses connected therewith. Provided that no part of that revenue shall be carried to the credit of the district fund when the price of gas to private consumers exceeds four shillings and sixpence per one thousand cubic feet.

Charges of
carrying
Order into
execution.

Art. XXIX. The Council shall not defray any of the charges and expenses of carrying this Order into execution other than payments required to be made in respect of money borrowed on mortgage of the district fund and general district rate out of that fund or rate when the price of gas to private consumers is less than five shillings and sixpence per one thousand cubic feet.

Inquiries and
expenses.

Art. XXX. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

For protec-
tion of Great
Western
Railway
Company
and Bala
and Festiniog
Railway
Company.

Art. XXXI. For the protection of the Great Western Railway Company (herein-after referred to as "the Great Western Company") and the Bala and Festiniog Railway Company (herein-after referred to as "the Bala Company") the following provisions shall apply:—

(1) In laying down altering improving enlarging extending and maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Order upon across under or adjoining or in any way affecting the

railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the Bala Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company or the Bala Company the same shall be done under the superintendence and to the reasonable satisfaction of the principal engineer of the Great Western Company or the Bala Company as the case may be and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing:

A.D. 1912.

*Bala (Gas)
Order.*

- (2) All such works shall be done by and at the expense of the Council except as in this Article otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or the Bala Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Council Provided always that should the Great Western Company or the Bala Company as the case may be elect so to do where any mains or pipes are required to be laid under or across any level crossing of their railway they may themselves lay the same at the reasonable costs charges and expenses of the Council:
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon:
- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company or the Bala Company the Council shall make compensation to the Great Western Company or the Bala Company as the case may be in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner herein-after provided:

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Bala (Gas)
Order.*

- (5) If the Great Western Company or the Bala Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the gasworks of the Council may have been constructed or laid the Great Western Company or the Bala Company as the case may be may on giving to the Council fourteen days' notice in writing under the hand of their Secretary or General Manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said gasworks of the Council across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such gasworks:
- (6) Any dispute or difference which may arise between the Great Western Company or the Bala Company and the Council with reference to the provisions of this Article or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company the Bala Company and the Council or either of them.

The SCHEDULE above referred to.

All that piece or parcel of land situate in the parish of Bala in the county of Merioneth upon parts of which the gasworks and manager's house have been erected and now in the occupation of the Company and also a garden lately in the occupation of Robert Lloyd Jones the whole containing by admeasurement 2082 square yards or thereabouts.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of April One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.
H. C. MONRO Secretary.

URBAN DISTRICT OF HARRINGTON.

A.D. 1912.

*Provisional Order under the Gas and Water Works Facilities
Act 1870.*

*Harrington
(Gas) Order.*

To the Urban District Council of Harrington; —

And to all others whom it may concern.

WHEREAS the Urban District Council of Harrington (herein-after referred to as "the Council") are the Urban Authority within the meaning of the Public Health Act 1875 for the Urban District of Harrington in the County of Cumberland (herein-after referred to as "the District");

And whereas by an agreement made on the Fifteenth day of May One thousand nine hundred and eleven the Council have subject to the sanction of the Local Government Board agreed to buy and the Harrington Gas Light Company Limited (herein-after referred to as "the Company") agreed to sell and transfer to the Council all the gasworks and all buildings plant apparatus and works connected therewith and all gas mains pipes meters stores fittings furniture tools and other effects and all other the real and personal property of the Company and all effects easements rights powers and authorities enjoyed or exerciseable by the Company within the District in this Order referred to as "the gas undertaking";

And whereas under the Public Health Act 1875 the Council are themselves empowered to supply gas throughout the whole of the District and have applied to the Local Government Board to issue a Provisional Order authorising them to maintain and continue the gas undertaking if and when the same shall be acquired by them to manufacture and supply gas and to borrow money for those purposes:

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 161 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect viz. :—

Art. I. This Order may be cited as the Harrington Gas Order 1912. Short title.

Art. II.—(1) Subject to the provisions of this Order the several words and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings (unless there be something in the subject matter or context repugnant to that construction).

Interpreta-
tion.

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

Harrington
(Gas) Order.

(2) The expression "residual products" includes coke culm asphaltum pitch tar oil ammoniacal liquor or any other refuse or residual matter or thing produced in or resulting from the manufacture of gas by the Council:

The expression "gasworks" includes the works of the Company and any building structure machinery apparatus or work constructed or provided for use in or for the purposes of any process or operation connected with the manufacture or storage of gas or the manufacture conversion preparation or storage of any residual products or otherwise for any purpose of the gas undertaking or of any powers or duties of the Council under this Order or under any enactment incorporated with and applied by this Order:

The expression "gas fittings" includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

Limits of
Order.

Art. III. The limits within which this Order shall be in force and have effect shall be the District.

Application
of Public
Health Act
1875.

Art. IV. The Council shall in relation to the purposes of this Order exercise and be subject to all the powers and provisions of the Public Health Act 1875 so far as the same are applicable to the purposes of this Order but nothing herein contained shall empower the Council to acquire lands otherwise than by agreement.

Incorporation
of Acts.

Art. V.—(1) The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entry upon lands by the promoters of the undertaking and except Section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Gasworks Clauses Act 1847 (except Sections 30 to 38 and Sections 43 45 46 and 47 thereof) and of the Gasworks Clauses Act 1871 (except Sections 8 24 to 27 29 and 35 and Schedule B thereof) are incorporated with this Order and the said provisions of the said Gasworks Clauses Acts as so incorporated shall have effect subject to the provisions of this Order and shall apply to any gasworks acquired by or vested in the Council under or by virtue of the Public Health Act 1875 or of this Order and to any gasworks constructed or provided under the authority of this Order.

(2) The Council may purchase by agreement and subject to the provisions of this Order any land not exceeding two acres in addition to the lands described in the schedule to this Order.

Art. VI.—(1) The Council may (when the gas undertaking has been acquired by them) maintain repair renew and continue and from time to time construct extend enlarge and alter any gasworks upon the lands described in the schedule to this Order.

A.D. 1912.
Harrington
(Gas) Order.
 Construction
 of works.

(2) Subject to the provisions of this Order the Council may manufacture supply and sell gas within the District for public and private purposes and may manufacture convert or prepare and sell any residual products.

Art. VII.—(1) The Council shall not manufacture gas nor manufacture convert or prepare any residual products on any lands other than the lands described in the schedule to this Order.

Council not
 to manufac-
 ture gas or
 residual pro-
 ducts except
 on scheduled
 lands.

(2) The Council shall not begin to store gas or any residual products on any lands other than the lands described in the schedule to this Order which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

Art. VIII.—(1) The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of such gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the said gas fittings are sold let supplied fixed set up altered removed or re-fixed.

Supply of
 gas fittings.

(2) Any fittings let for hire under the provisions of this Article shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Council as the actual owners thereof.

Art. IX. The quality of the gas supplied by the Council under this Order shall with respect to its illuminating power be such as to produce at the testing place herein-after mentioned when burned at the rate of five cubic feet per hour a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains of sperm per hour and shall in all respects be in accordance with the provisions of the Gasworks Clauses Act 1871.

Quality of
 gas.

Art. X. The Council shall before supplying or within one month after beginning to supply gas under the authority of this Order provide

Photometer
 to be pro-
 vided.

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. and maintain a suitable photometer and other necessary appliances for
Harrington the purpose of testing the quality of the gas and shall at all times keep
(Gas) Order. the same in proper order and repair.

Pressure. Art. XI. All gas supplied by the Council under this Order to any consumer of gas shall be supplied at such pressure as to balance from midnight to sunset a column of water not less than six-tenths of an inch in height and from sunset to midnight a column of water not less than eight-tenths of an inch in height at the main or as near as may be to the junction therewith of the service pipe supplying the consumer.

Testing place and burner. Art. XII.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place for testing the gas supplied under this Order shall be the testing place provided by the Company on the lands described in the schedule to this Order or such other testing place as may be provided by the Council on the said lands before commencing such supply.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand Burner No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light.

(3) The Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light that may appear to the Board to be equally or more suitable for the testing.

(4) The Council shall before supplying gas under this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(5) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied under this Order and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

No penalty in case of unavoidable cause. Art. XIII. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (Gas) Act, 1912.

it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident. A.D. 1912.

Art. XIV. The price to be charged by the Council for gas supplied by them to consumers shall not exceed five shillings per one thousand cubic feet and so on in proportion for any less quantity supplied. Provided nevertheless that every odd fraction or portion of one hundred cubic feet may be charged for as one hundred cubic feet. *Harrington
(Gas) Order.*
Maximum
price.

Art. XV. The Council shall keep separate records of the gas supplied to private consumers and for public lighting respectively. The price charged for gas for public lighting shall not be less than that charged to private consumers by more than ten per centum. Price of gas
for public
supply.

Art. XVI. If a person requiring a supply of gas from the Council has previously quitted premises at which gas was supplied to him by the Council without paying to them all gas charges and meter rent due from him to the Council they may refuse to furnish to him a supply of gas until he pays the same. Power to re-
fuse to supply
persons in
debt for other
premises.

Art. XVII.—(1) At least twenty-four hours' notice shall be given to the Council by every gas consumer either personally at the office for the time being of the Council or in writing before he quits any premises supplied with gas by meter by the Council and in default of such notice the consumer so quitting shall be liable to pay to the Council the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Council to supply gas to such premises whichever shall first occur. Gas con-
sumers to
give notice to
Council
before re-
moving.

(2) Notice of the effect of this requirement shall be endorsed upon every demand note for gas charges payable to the Council.

Art. XVIII.—(1) The Council may by notice in writing require a consumer of gas supplied by the Council and used for the working of an engine to fix and use an anti-fluctuator in a suitable position upon the premises to which the gas is supplied and whereon the engine is in use or to keep an anti-fluctuator so fixed and used in proper order and repair at all times while in use or to repair renew or replace an anti-fluctuator which is not in proper order or repair: Authorising
Council to
require an
anti-fluctua-
tor to be used
for control-
ling supply
of gas to a
gas engine;

If the consumer after any such notice as aforesaid fails to fix and use an anti-fluctuator or to keep an anti-fluctuator in proper order and repair or to repair renew or replace an anti-fluctuator which is not in proper order and repair the Council may cease to supply him with gas.

(2) The Council may at all reasonable times demand and shall thereupon have access to any anti-fluctuator fixed upon any premises to which gas is supplied by the Council and for the purpose of

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. ascertaining whether the anti-fluctuator is in proper order or repair
Harrington may take off remove test inspect and replace the anti-fluctuator such
(Gas) Order. taking off removing testing and replacing to be done at the expense
of the Council if the anti-fluctuator be found in proper order but other-
wise at the expense of the consumer.

(3) For the purposes of this Article an "anti-fluctuator" means any apparatus article or thing for the purpose of controlling and regulating the supply of gas to any engine and preventing any inconvenience or danger from the intermittent consumption of gas by the engine.

Supply of gas Art. XIX. The Council may contract with any local authority
in bulk. company or persons authorised to supply gas under parliamentary
powers in any district adjacent to the limits of supply for the purchase
by and supply to the Council of gas in bulk upon such terms and
conditions and for such periods not exceeding in any case seven
years from the making of the contract as shall be agreed upon but
nothing in this Article shall authorise the Council to lay any main or
interfere with any street beyond the limits of supply.

Period of Art. XX.—(1) In the event of any meter used by a consumer of
error in defec- gas being tested in manner provided by the Sale of Gas Act 1859
tive meters. and being proved to register erroneously within the meaning of the
said Act such erroneous registration shall be deemed to have first
arisen during the then last preceding quarter of the year unless it be
proved to have first arisen during the then current quarter.

(2) The amount of the allowance to be made to or of the sur-
charge to be made upon the consumer by the Council shall be paid
by or to the Council to or by the consumer as the case may be and
shall be recoverable in like manner as gas rents are recoverable by
the Council.

Notice of dis- Art. XXI. A notice to the Council from a consumer for the dis-
continuance. continuance of a supply of gas shall not be of any effect unless it be
in writing signed by or on behalf of the consumer and be left at or
sent by post to the office for the time being of the Council or be given
by the consumer personally at the said office.

Borrowing Art. XXII. Subject to the provisions of this Order the Council
powers. may with the sanction of the Local Government Board and for any of
the purposes of this Order (which purposes shall be deemed to include
the costs payable by the Council of and in connexion with the pre-
paration making and confirmation by Parliament of this Order and the
sum to be paid for the purchase of the gas undertaking) borrow
money upon the security of the moneys from time to time received by
them by way of revenue under this Order and upon the security of
the district fund and general district rate of the District or upon either
of those securities.

A.D. 1912.

Art. XXIII. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

*Harrington
(Gas) Order.*
 Local Loans
 Act and certain
 provisions of
 Public Health
 Act made
 applicable.

Art. XXIV. The moneys borrowed under Article XXII. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Period for
 repayment of
 money
 borrowed.

Art. XXV.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
 repayment.

(2) Subject to the provisions of Article XXVI. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund ; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time
Harrington
(Gas) Order. to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase re-
duction or
discontinu-
ance of pay-
ments to
sinking fund.

Art. XXVI.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

A.D. 1912.
Harrington
(Gas) Order.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Surplus of
sinking fund.

Art. XXVII.—(1) The Council shall have power—

Power to re-
borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this Article.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

Harrington
(Gas) Order.

(c) out of moneys derived from the sale of land ; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
of borrowed
moneys.

Art. XXVIII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine Provided that it shall not be in any way incumbent on any mortgagee to see to the application of any moneys so borrowed nor shall the mortgagee be responsible for any misapplication thereof.

Receiver.

Art. XXIX.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment of
debt.

Art. XXX.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1912.
Harrington
(Gas) Order.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. XXXI. The powers of borrowing conferred by this Order shall be deemed to be distinct from and in addition to the powers of borrowing conferred on the Council by the Public Health Act 1875.

Borrowing
powers to be
in addition to
those in Public
Health Act.

Art. XXXII. The Council shall keep separate capital and revenue accounts of all receipts credits payments liabilities and transactions in and about the execution and in relation to the purposes of this Order which accounts shall be distinct from the other accounts of the Council and shall be called respectively "the gas capital account" and "the gas revenue account."

Separate
accounts.

Art. XXXIII.—(1) All moneys from time to time received by the Council by way of revenue under this Order shall be applied for the following purposes:—

Application
of gas
revenue.

In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of constructing continuing conducting managing and maintaining the gasworks;

In payment of the interest on the moneys borrowed or re-borrowed for the purposes of this Order;

In providing for the discharge of any moneys borrowed or re-borrowed for the purposes of this Order in accordance with the provisions of this Order or if those moneys were borrowed thereunder of the Local Loans Act 1875;

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Harrington
(Gas) Order.*

In setting apart if the Council think fit a yearly sum not exceeding ten pounds per centum of the said revenue for the purpose of forming a reserve fund to provide for any extraordinary expenditure in connection with the gas undertaking Provided that such reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article XXV. of this Order as to the sinking fund until it amounts according to the market price of the investments to the sum of five hundred pounds and that whenever the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue under this Order;

In payment if the Council think fit of the expenses of executing any permanent works authorised by this Order.

(2) The Council shall carry to the credit of the district fund so much of any balance remaining in any year of the revenue arising from their gas undertaking as may in the opinion of the Council not be required for carrying on the gas undertaking and paying the current expenses connected therewith Provided that no part of that revenue shall be carried to the credit of the district fund when the price of gas to private consumers exceeds four shillings per one thousand cubic feet.

Charges of
carrying
Order into
execution.

Art. XXXIV. The Council shall not defray any of the charges and expenses of carrying this Order into execution other than payments required to be made in respect of money borrowed on mortgage of the district fund and general district rate out of that fund or rate when the price of gas to private consumers is less than five shillings per one thousand cubic feet.

Inquiries and
expenses.

Art. XXXV. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

The SCHEDULE above referred to.

A.D. 1912.

*Harrington
(Gas) Order.*

All those two pieces of land situate in the Borough of Workington at or near Harrington Harbour belonging to the Company containing respectively 960 square yards and 876 square yards or thereabouts upon which the gasworks of the Company have been erected which pieces of land are bounded on the west by a road leading from Harrington Harbour to Harrington Ropery and on the east by the Whitehaven Junction Railway on the north by land belonging or reputed to belong to Alan Delancy Curwen and on the south by the joiner's shop and yard belonging or reputed to belong to H. Simon.

Given under the Seal of Office of the Local Government Board
this Twentieth day of April One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

URBAN DISTRICT OF HIPPERHOLME.

Provisional Order under the Gas and Water Works Facilities Act 1870.

*Hipperholme
(Bailiff
Bridge) (Gas)
Order.*

To the Urban District Council of Hipperholme;—

And to all others whom it may concern.

WHEREAS the Urban District Council of Hipperholme (herein-after referred to as "the Council") are the urban authority within the meaning of the Public Health Act 1875 for the urban district of Hipperholme in the West Riding of the County of York (herein-after referred to as "the District");

And whereas the Council have applied to the Local Government Board to issue a Provisional Order authorising a gas undertaking and empowering the Council with that object to purchase gas in bulk and supply gas within that portion of the district which comprises the area for the purposes of this Order and hereafter referred to as the Bailiff Bridge Gas Area and described in Schedule I. to this Order and to borrow money for those purposes;

And whereas the Bailiff Bridge Gas Area is not now supplied with gas by any corporation company or person authorised by or in

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

*Hipperholme
 (Bailiff
 Bridge) (Gas)
 Order.*

38 & 39 Vict.
 c. 55.

Short title.

Interpreta-
 tion.

Limits of
 Order.

Application
 of Public
 Health Act
 1875.

Incorporation
 of Acts.

pursuance of any Act of Parliament or any Order confirmed by Act of Parliament to supply gas for public and private purposes :

Now therefore We the Local Government Board in pursuance of the powers given to Us by Section 161 of the Public Health Act 1875 and by any other enactments in that behalf do hereby order that from and after the date of the Act of Parliament confirming this Order the following provisions shall take effect viz. :—

Art. I. This Order may be cited as the Hipperholme (Bailiff Bridge) Gas Order 1912.

Art. II.—(1) Subject to the provisions of this Order the several words and expressions to which by the Acts in whole or in part incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings unless there be something in the subject matter or context inconsistent with or repugnant to that construction.

(2) The expression “gasworks” includes any building structure machinery apparatus or works constructed or provided for use in or for the purposes of the storage and supply but not the manufacture of gas or otherwise for any purpose of the gas undertaking or of any powers or duties of the Council under this Order or under any enactment incorporated with and applied by this Order.

(3) The expression “gas fittings” includes any meter engine oven stove range pipe or burner or any other apparatus appliance article or thing used or intended or adapted to be used in or in connexion with the supply or consumption of gas for the purposes of lighting motive power heating and cooking or for any other purpose for which gas can or may be used.

Art. III. Subject to the provisions of Article XXX. of this Order the limits within which this Order shall be in force and shall have effect shall be that part of the District which is defined in Schedule I. to this Order and which part is hereafter referred to as “the Bailiff Bridge Gas Area.”

Art. IV. The Council shall in relation to the purposes of this Order exercise and be subject to all the powers and provisions of the Public Health Act 1875 so far as the same are applicable to the purposes of this Order but nothing herein contained shall empower the Council to acquire lands otherwise than by agreement.

Art. V. The provisions of the Lands Clauses Acts (except with respect to the purchase and taking of lands otherwise than by agreement and with respect to the entering upon lands by the promoters of the undertaking and except Section 127 of the Lands Clauses Consolidation Act 1845) and the provisions of the Gasworks Clauses Act 1847 (except Sections 30 to 38 and Sections 43 45 46 and 47

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxi.]
Provisional Orders Confirmation (Gas) Act, 1912.

thereof) and of the Gasworks Clauses Act 1871 (except Sections 8 24 to 27 29 and 35 and Schedule B thereof) are incorporated with this Order and the said provisions of the said Gasworks Clauses Acts as so incorporated shall have effect subject to the provisions of this Order and shall apply to any gasworks acquired by or vested in the Council under or by virtue of the Public Health Act 1875 and to any gasworks constructed or provided under the authority of this Order.

A.D. 1912.
Hipperholme
(Bailiff
Bridge) (Gas
Order.

Art. VI. Subject to the provisions of this Order the Council may— Construction of works.

- (1) Construct maintain repair extend enlarge and alter any gasworks upon the lands described in Schedule II. to this Order; and
- (2) Supply and sell gas within the Bailiff Bridge Gas Area for public and private purposes.

Art. VII. The Council shall not manufacture gas or any residual products arising in the manufacture of gas and the Council shall not begin to store gas on any lands other than the lands described in Schedule II. to this Order which shall be situated within three hundred yards of any dwelling-house without the previous consent in writing of the owner lessee and occupier of that dwelling-house.

Council not to manufacture gas or residual products or to store gas except on scheduled lands.

Art. VIII. The Council may purchase or hire and sell or let on hire supply and otherwise deal in and fix set up alter remove and re-fix but shall not manufacture any gas fittings and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting supply fixing setting up altering removing or re-fixing of the said gas fittings and for securing their safety and (if the circumstances so require) their return to the Council as may be agreed upon between the Council and the person to or for whom the gas fittings are sold let supplied fixed set up altered removed or re-fixed.

Supply of gas fittings.

Art. IX. The Council may contract with any local authority company or person authorised to supply gas under parliamentary powers in any district adjacent to the Bailiff Bridge Gas Area for the purchase by and supply to the Council of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon but nothing in this Article shall authorise the Council to lay any main or interfere with any street beyond the Bailiff Bridge Gas Area.

Purchase of gas in bulk.

Art. X. The gas supplied by the Council under this Order shall with respect to its quality illuminating power pressure and purity be equal to the gas purchased by them in bulk.

Quality of gas.

Art. XI. The Council shall before supplying or within one month after beginning to supply gas under the authority of this Order provide

Photometer to be provided.

A.D. 1912.

Hipperholme
(*Bailiff*
Bridge) (*Gas*)
Order.

and maintain a suitable photometer and other necessary appliances for the purpose of testing the quality of the gas and shall at all times keep the same in proper order and repair.

Testing place
and burner.

Art. XII.—(1) For the purposes of the Gasworks Clauses Act 1871 the prescribed testing place for testing the gas supplied under this Order shall be a testing place provided by the Council on the lands described in Schedule II. to this Order before commencing such supply.

(2) For testing the illuminating power of the gas the burner to be used shall be that known as the Metropolitan Argand Burner No. 2 the photometer shall be the bar photometer the standard light shall be that supplied by Harcourt's ten-candle pentane lamp and in making the test the burner shall be so used as to obtain from the gas when burned at the rate aforesaid the greatest amount of light.

(3) The Board of Trade may on the application of the Council or any five consumers approve the use of any other burner photometer or standard light that may appear to the Board to be equally or more suitable for the testing.

(4) The Council shall before supplying gas under this Order provide all the apparatus required by this Order for the testing of gas and shall at all times keep the same in proper order and repair.

(5) Any gas examiner appointed under the Gasworks Clauses Act 1871 for the purposes of this Order may from time to time subject to the terms of his appointment at the said testing place or elsewhere not being the immediate approach to any railway bridge or railway station as and when he thinks fit test the pressure at which the gas is supplied under this Order and for that purpose may open any street road passage or place vested in or under the control of any local or road authority and two hours' previous notice shall be given to the Council of the time and place at which any testing for pressure elsewhere than at the testing place will be conducted.

No penalty
in case of
unavoidable
cause.

Art. XIII. No penalty shall be incurred by the Council for insufficiency of pressure defect of illuminating power or for excess of impurity in the gas supplied by them in any case in respect of which it is proved that such insufficiency defect or excess was produced by an unavoidable cause or accident.

Maximum
price.

Art. XIV. The price to be charged by the Council for gas supplied by them to consumers shall not exceed five shillings and sixpence per one thousand cubic feet and so on in proportion for any less quantity supplied. Provided nevertheless that every odd fraction or portion of one hundred cubic feet may be charged for as one hundred cubic feet.

Price of gas
for public
supply.

Art. XV. The Council shall keep separate records of the gas supplied to private consumers and for public lighting respectively. The

[2 & 3 GEO. 5.]¹ *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912.

price charged for gas for public lighting shall not be less than that charged to private consumers by more than ten per centum.

*Hipperholme
 (Bailiff
 Bridge) (Gas)
 Order.*

Art. XVI. Subject to the provisions of this Order the Council may with the sanction of the Local Government Board and for any of the purposes of this Order (which purposes shall be deemed to include the costs payable by the Council of and in connexion with the preparation making and confirmation by Parliament of this Order and the sum to be paid for the purchase of the undertaking of the Bailiff Bridge Gas Company Limited) borrow money upon the security of the moneys from time to time received by them by way of revenue under this Order and upon the security of the district fund and general district rate of the district or upon either of those securities.

Borrowing
 powers.

Art. XVII. For the purpose of raising money in the exercise of the powers of borrowing conferred by this Order the provisions of the Local Loans Act 1875 shall be available to the Council and Sections 236 to 238 of the Public Health Act 1875 shall apply to all moneys borrowed on mortgage under this Order.

Local Loans
 Act and cer-
 tain provisions
 of Public
 Health Act
 made appli-
 cable.

Art. XVIII. The moneys borrowed under Article XVI. of this Order shall be repaid within such period not exceeding sixty years from the date of borrowing as the Council with the sanction of the Local Government Board in each case determine and the period so determined and sanctioned is herein-after referred to as "the prescribed period" and shall with reference to the repayment of those moneys be the prescribed period for the purposes of this Order and of the Local Loans Act 1875.

Period for
 repayment
 of moneys
 borrowed.

Art. XIX.—(1) The Council shall repay the moneys borrowed under this Order (other than moneys borrowed under the provisions of the Local Loans Act 1875) by equal annual instalments of principal or by equal annual instalments of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or the others of them.

Mode of
 repayment.

(2) Subject to the provisions of Article XX. of this Order if the Council determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

Formation
 maintenance
 and applica-
 tion of sink-
 ing fund.

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is herein-after called a non-accumulating sinking fund; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be

A.D. 1912.

—
 Hipperholme
 (Bailiff
 Bridge) (Gas)
 Order.

sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(3) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by Section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Council and the Council shall be at liberty from time to time to vary and transpose the investments.

(4) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(5) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part of the sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(6)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Council:

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards those equal annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

Increase re-
 duction or
 discontinu-

Art. XX.—(1) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as the Board may direct.

A.D. 1912.
 —
Hipperholme
(Bailiff
Bridge) (Gas)
Order.
 ance of pay-
 ments to
 sinking fund.

(2) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(3) If in the opinion of the Local Government Board the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as the Board approve.

(4) If in the opinion of the Local Government Board the amount in any sinking fund at any time together with the accumulations thereon (in the case of an accumulating sinking fund) will probably be sufficient to repay the loan in respect of which it is formed within the prescribed period the Council may with the consent of the Board discontinue the equal annual payments to the sinking fund until the Board otherwise direct.

(5) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

Art. XXI.—(1) The Council shall have power—

Power to
 re-borrow.

(a) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this Article shall for the purposes of repayment be deemed to form part of the original loan and shall

[Ch. cxl.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. be repaid within that portion of the prescribed period which remains
Hipperholme unexpired and the provisions which are for the time being applicable
(Bailiff to the original loan shall apply to the moneys borrowed under this
Bridge) (Gas) Article.
Order.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments ; or

(b) by means of a sinking fund ; or

(c) out of moneys derived from the sale of land ; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Application
of borrowed
moneys.

Art. XXII. All moneys from time to time borrowed under this Order shall be applied by the Council only for the purposes for which the same are respectively authorised to be borrowed excepting that moneys which may have been borrowed in excess of the amount required shall be applied in such manner as the Council with the approval of the Local Government Board determine. Provided that it shall not be in any way incumbent on any mortgagee to see to the application of any moneys so borrowed nor shall the mortgagee be responsible for any misapplication thereof.

Receiver.

Art. XXIII.—(1) Subject to the provisions of this Article any mortgagee of the Council in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him :

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Return as to
provision for
repayment of
debt.

Art. XXIV.—(1) The clerk to the Council shall within twenty-one days after the Thirty-first day of March in each year if during the twelve months next preceding the said Thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder

and at any other time when the Local Government Board may require such a return to be made transmit to the Board a return in such form as may from time to time be prescribed by the Board and if required by the Board verified by statutory declaration of the clerk showing for the year next preceding the making of the return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make the return the clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of that penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

A.D. 1912.
 ———
Hipperholme
(Bailiff
Bridge) (Gas)
Order.

(2) If it appears to the Local Government Board by that return or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether the instalment or annual payment or sum is required by this Order or by the Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than an authorised purpose the Board may by order direct that the sum in their order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as is mentioned in the said order and any such order shall be enforceable by writ of mandamus to be obtained by the Board out of the High Court.

Art. XXV. The powers of borrowing conferred by this Order shall be deemed to be distinct from and in addition to the powers of borrowing conferred on the Council by the Public Health Act 1875.

Borrowing
 powers to be in
 addition to those
 in Public Health
 Act.

Art. XXVI. The Council shall keep separate capital and revenue accounts of all receipts credits payments liabilities and transactions in and about the execution and in relation to the purposes of this Order which accounts shall be distinct from the other accounts of the Council and shall be called respectively "the gas capital account" and "the gas revenue account."

Separate
 accounts.

A.D. 1912.

Hipperholme
(Bailiff
Bridge) (Gas)
Order.Application
of gas reve-
nue.

Art. XXVII.—(1) All moneys from time to time received by the Council by way of revenue under this Order shall be applied for the following purposes:—

In payment of the gas establishment charges (that is to say) of the expenses properly chargeable to revenue of constructing continuing conducting managing and maintaining the gasworks;

In payment of the interest on the moneys borrowed or re-borrowed for the purposes of this Order;

In providing for the discharge of any moneys borrowed or re-borrowed for the purposes of this Order in accordance with the provisions of this Order or if those moneys were borrowed thereunder of the Local Loans Act 1875;

In setting apart if the Council think fit a yearly sum not exceeding ten pounds per centum of the said revenue for the purpose of forming a reserve fund to provide for any extraordinary expenditure in connexion with the gas undertaking. Provided that the reserve fund shall be accumulated by way of compound interest by investment in the manner specified in subdivision (3) of Article XIX. of this Order as to the sinking fund until it amounts according to the market price of the investments to the sum of five hundred pounds and that whenever the reserve fund amounts according to the market price of the investments to the sum of five hundred pounds the income therefrom shall be applied in the same manner as money received by the Council by way of revenue under this Order;

In payment if the Council think fit of the expenses of executing any permanent works authorised by this Order.

(2) The Council shall carry to the credit of the district fund so much of any balance remaining in any year of the revenue arising from their gas undertaking as may in the opinion of the Council not be required for carrying on the gas undertaking and paying the current expenses connected therewith. Provided that no part of that revenue shall be carried to the credit of the district fund when the price of gas to private consumers exceeds four shillings per one thousand cubic feet.

Charges of
carrying
Order into
execution.

Art. XXVIII. The Council shall not defray any of the charges and expenses of carrying this Order into execution other than payments required to be made in respect of money borrowed on mortgage of the district fund and general district rate out of that fund or rate when the price of gas to private consumers is less than five shillings and sixpence per one thousand cubic feet.

Inquiries and
expenses.

Art. XXIX. Where the Local Government Board cause any local inquiry to be held with reference to any of the purposes of this Order

[2 & 3 GEO. 5.] *Local Government Board's* [Ch. cxl.]
Provisional Orders Confirmation (Gas) Act, 1912.

the costs incurred by the Board in relation to that inquiry (including such reasonable sum not exceeding three guineas a day as the Board may determine for the services of any inspector or officer of the Board engaged in the inquiry) shall be paid by the Council and the Board may certify the amount of the costs so incurred and any sum so certified and directed by the Board to be paid by the Council shall be a debt due to the Crown from the Council.

A.D. 1912.
Hipperholme
(Bailiff
Bridge) (Gas)
Order.

Art. XXX. Nothing in this Order shall take away prejudice or affect the rights of the Halifax Corporation or of the Bradford Corporation to supply gas within the Bailiff Bridge Gas Area in the event of failure on the part of the Council to provide and maintain a supply of gas within the said area in accordance with the provisions of this Order and the Acts incorporated therewith.

For pro-
 tection of
 Halifax and
 Bradford
 Corpora-
 tions.

Art. XXXI.—(1) Subsection 12 of section 11 of the Local Government Act 1888 (which relates to main roads) shall apply and have effect as if with the necessary modifications the subsection were herein re-enacted and in terms made applicable to every county bridge (including every road repairable with a county bridge) which is situate within the Bailiff Bridge Gas Area and in relation to which anything is authorised or required to be done or is done in pursuance of this Order or of any enactment applied by or incorporated with this Order.

For protec-
 tion of West
 Riding of
 Yorkshire
 County
 Council.

(2) Section 8 of the Gasworks Clauses Act 1847 as applied by or incorporated with this Order shall in relation to any main road county bridge or road repairable with a county bridge in the Bailiff Bridge Gas Area have effect as if the word "seven" were substituted for the word "three" in that section.

(3) If the County Council of the West Riding of Yorkshire (hereinafter referred to as "the County Council") at any time deem it necessary to raise sink or otherwise alter the situation of any gas pipe gas main or gasworks laid or placed by the Council in the Bailiff Bridge Gas Area in pursuance of this Order or of any enactment incorporated with this Order in under or upon a main road or a county bridge or a road repairable with a county bridge the County Council may by notice in writing require the Council to raise sink or otherwise alter the situation of the said pipe main or works in such manner and within such reasonable time as is specified in the notice and if the notice is not complied with the County Council may themselves make the alteration required and the reasonable expenses of or connected with any such alteration shall whenever there is sufficient ground for requiring the alteration be paid by the Council:

Provided that except in a case of necessity no such alteration shall be required or made as will permanently injure any such pipe main or works or prevent the gas from flowing as freely and conveniently as usual.

[Ch. cxi.] *Local Government Board's* [2 & 3 GEO. 5.]
Provisional Orders Confirmation (Gas) Act, 1912.

A.D. 1912. (4) All mains or pipes other than service pipes to be laid by the
Hipperholme Council in the Bailiff Bridge Gas Area in or along any main road shall
(Bailiff be so laid that the upper surface of the main or pipe shall be at a depth
Bridge) (Gas) of not less than two feet from the surface of the road and in such position
Order. as the County Council shall by writing under the hand of their surveyor
direct.

(5) If any difference arises at any time between the County Council
and the Council with respect to any matter to which this article relates
the difference shall if either authority so require be determined by an
arbitrator appointed by the Local Government Board.

The SCHEDULES above referred to.

SCHEDULE I.

Such part of the Urban District of Hipperholme as is bounded on
the east by the County Borough of Bradford and the Parish of Clifton
on the south by the gas limits of the Borough of Brighouse to a point
two hundred and ten yards west from the Bradford Main Road thence
by a straight line northward to the centre of the Clifton Beck near
Dog Bridge thence proceeding northwards by the Parliamentary Division
Boundary to the boundary of the County Borough of Bradford.

SCHEDULE II.

All that piece or parcel of land situate at Bailiff Bridge in the
Township and Urban District of Hipperholme bounded on the north
by land belonging to or reputed to belong to the Bradford Corporation
on the south by land belonging to or reputed to belong to Richard
Kershaw on the east by the Clifton Beck on the west by the Bradford
and Huddersfield Main Road and which said piece or parcel of land
contains in the whole by admeasurement three roods or thereabouts.

Given under the Seal of Office of the Local Government Board
this Fifteenth day of April One thousand nine hundred and
twelve.

(L.S.)

JOHN BURNS President.

H. C. MONRO Secretary.

Printed by EYRE and SPOTTISWOODE, Ltd.,

FOR

ROWLAND BAILEY, Esq., C.B., M.V.O., the King's Printer of Acts of Parliament.

And to be purchased, either directly or through any Bookseller, from

WYMAN AND SONS, LTD., FETTER LANE, E.C.; or

H.M. STATIONERY OFFICE (SCOTTISH BRANCH), 23, FORTH STREET, EDINBURGH; or
E. PONSONBY, LTD., 116, GRAFTON STREET, DUBLIN.